

APR 16 1992

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10761

1. Air New Zealand Limited, Auckland, New Zealand, (U.S. Agent: Air New Zealand, Los Angeles, Ca.) is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to transport two Koehler Flame Safety lamps (for 1992 Olympic games) containing small quantities of a flammable liquid; the two lamps will be burning during transportation and subject to the limitations and special requirements specified herein. This exemption authorizes the carriage of small quantities of a flammable liquid in safety lamps in the cabin compartment of a passenger carrying aircraft and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Air New Zealand Limited's application dated April 13, 1992, submitted in accordance with 49 CFR 107.113 based on national interest.

3. HAZARDOUS MATERIALS (Descriptor and class). Two Koehler Flame Safety lamps containing approximately 100 milliliters of petroleum naphtha (UN1255) in each lamp, classed as flammable liquid, (Class 3).

4. PROPER SHIPPING NAME (49 CFR 172.101). Petroleum naphtha.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B, Part 172, 173.21, 173.118, 175.30, 175.85.

6. MODES OF TRANSPORTATION AUTHORIZED. Passenger-carrying aircraft.

7. SAFETY CONTROL MEASURES. The following provisions apply:

1. Two Koehler Flame Safety Lamps, conforming to OSHA requirements, each containing not more than 100 milliliters of petroleum naphtha.

2. The two lamps must be secured in a container that is secured in a seat (as described in the Air New Zealand application) located in the forward cabin of the passenger compartment in a location accessible to a crew member. The container is constructed to the specifications submitted with Air New Zealand application.

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3. The two lamps may be burning while onboard the aircraft provided they are under the supervision and observation of an employee of the New Zealand Government Mail Authority, who has direct and immediate access to a Halon fire extinguisher.

4. The lamps may not be re-filled or re-ignited during flight.

8. SPECIAL PROVISIONS.

a. All aircrew members on the flight concerned must be informed of the presence of the lamps and the conditions under which they are carried.

b. The lamps may not be secured in the aircraft until fueling of the aircraft is completed and they must be removed at destination or transit stops before refueling of the aircraft commences.

c. Shipping paper requirements including certification; marking, including marking of the exemption number on the package; and labeling of packages are waived.

d. A copy of this exemption and the Air New Zealand application referenced above must be carried aboard the aircraft used to transport packages covered by this exemption.

e. The flight will originate at Frankfurt, Germany destined for Auckland, New Zealand with transit stops at Los Angeles, California and Honolulu, Hawaii.

e. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

9. REPORTING REQUIREMENTS. Any incident involving loss fire or of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. May 15, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FAA.